



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP, Planning and Development Director
Subject: Development Agreement for Whitney Ranch 3rd Filing final plat.
Date: March 22, 2021

Background:

The item for consideration is a Development Agreement associated with the Whitney Ranch 3rd Filing final plat. The final plat is a separate item on this agenda and will be considered at the Public Services Committee on April 6, 2021.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral: March 22, 2021
- Public Service Committee: April 6, 2021
- Final Consideration: April 12, 2021

On July 27, 2020, the Governing Body approved the preliminary plat with multiple conditions, two of which (#3 and #4) are satisfied by this agreement. Conditions #3 and #4 read as follows:

“3. Prior to approval of the final plat(s), the applicant/developer shall enter into an agreement with the City regarding impacts to Cheyenne Fire Rescue. The agreement shall identify the applicant/developer’s proportionate share of the cost of extending service (land, facilities, and equipment) to the area and shall be determined based on the ISO Fire Suppression Rating Criteria and evaluation of said criteria.

4. Prior to Engineering Plan Review approval, the applicant/developer shall enter into an agreement with the City regarding design and construction of roadway improvements (such as traffic signals, curbs, gutter, pavement, additional lanes, traffic calming devices, etc.). The applicant/developer shall pay their proportionate share of costs for design and improvements based on their impact to the system as identified in the Traffic Study submitted with this plat.”

City Planning and Development, City Engineering, and Cheyenne Fire Rescue have been working with the Developer and their agent to draft an agreement that satisfactory meets conditions #3 and #4. The other conditions have been met and are detailed in the related final plat staff report.

Public Safety Fees:

For the purpose of meeting condition #3 staff and the developer utilized the 2015 TichlerBise Impact Fee Study. The 2015 study identified a fee for new residential development based on square footage of finished square footage. The 2015 values were averaged for the anticipated housing types in Whitney Ranch (between 1,100 and 2,100 finished square feet) and were adjusted for inflation utilizing the construction cost index for twenty (20) cities, as issued by the current Engineering News Record which is

similarly used for calculating infrastructure reimbursements pursuant to Cheyenne Municipal Code subsection 1.16.070.b. The development proposes construction of 107 single-family homes, 55 of which range from 1,100 to 1,600 finished square feet and 52 of which range from 1,601 to 2,100 finished square feet. The average fee between unit types was averaged and adjusted for inflation reaching an agreed upon amount of \$756 per unit. The total fees for this development will be \$80,892 which will be placed in the Development Impact Fund earmarked for the purpose of enhancing the City's fire rescue infrastructure.

Dell Range Boulevard / Van Buren Avenue Signal:

For the purpose of meeting condition #4, staff and the developer utilized the traffic study that was submitted with the Whitney Ranch Development. The traffic study indicated that the development would warrant off-site improvements, including signalization, of the intersection of Dell Range Boulevard and Van Buren Street. The study further elaborated that intersection improvements, including a signal, should be shared as follows: City 15.5% and the Developer 84.5%. The estimated cost of a signal installation is \$225,796 (based on the average of the last three traffic signal bids accepted by the City). The City's share is \$34,998 and the Developer's share is \$190,798.

Staff Recommendation:

Staff recommends the Governing Body approve the agreement as it satisfies preliminary plat conditions 3 and 4.

Attachments:

1. Development Agreement

mt

Date: 3/18/21

DEVELOPMENT AGREEMENT

THIS DEVELOPMENT AGREEMENT ("Agreement"), is made and entered into this _____ day of _____, 2021, by and between the City of Cheyenne, Cheyenne, Wyoming, a municipal corporation, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as the "City," and Whitney Ranch, LLC, a Wyoming Limited Liability Corporation, 6636 Cedar Avenue S, Suite 300, Richfield, Minnesota 55423, hereinafter referred to as the "Developer".

RECITALS

WHEREAS, Developer is developing a subdivision to be known as Whitney Ranch 3rd Filing situated in the County of Laramie, State of Wyoming (herein referred to as "Development"), as shown in Exhibit A which is attached hereto and incorporated herein, and legally described as follows, to wit:

A PARCEL OF UN-PLATTED LAND BEING SITUATED IN A PORTION OF THE SOUTHWEST ONE-QUARTER OF SECTION 23, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE SIXTH PRINCIPAL MERIDIAN.

THE EXTERIOR BOUNDARY OF SAID PARCELS BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

COMMENCING AT THE CITY OF CHEYENNE CONTROL POINT "DELL RANGE." THENCE N72°33'00"W A DISTANCE OF 4993.09' TO A POINT ON THE NORTHERLY LINE OF WHITNEY RANCH 1ST FILING, SAID POINT ALSO BEING THE NORTHEAST CORNER OF LOT 8, BLOCK 3, OF WHITNEY RANCH 1ST FILING, THENCE ALONG SAID LINE N89°47'53"W A DISTANCE OF 531.87' TO A POINT AND ALSO BEING THE TRUE POINT OF BEGINNING;

THENCE CONTINUING ALONG THE SAID NORTH LINE OF WHITNEY RANCH 1ST FILING N89°47'53"W A DISTANCE OF 2660.39' TO A POINT ON THE WEST LINE OF THE SOUTHWEST QUARTER OF SECTION 23, THENCE ALONG THE WEST LINE OF SAID SOUTHWEST QUARTER N00°03'31"E A DISTANCE OF 891.37' TO A POINT, THENCE LEAVING THE WEST LINE OF SAID SOUTHWEST QUARTER S89°56'29"E A DISTANCE OF 504.64' TO A POINT, THENCE S00°12'07"W A DISTANCE OF 322.63' TO A POINT, THENCE S89°47'53"E A DISTANCE OF 775.97' TO A POINT, THENCE N00°05'24"E A DISTANCE OF 129.04' TO A POINT, THENCE S89°54'36"E A DISTANCE OF 404.12' TO A POINT, THENCE S00°05'24"W A DISTANCE OF 215.93' TO A POINT, THENCE S89°13'38"E A DISTANCE OF 550.85' TO A POINT, THENCE N90°00'00"E A DISTANCE OF 56.99' TO A POINT, THENCE S00°05'24"W A DISTANCE OF 167.73' TO A POINT, THENCE S89°58'29"E A DISTANCE OF 371.45' TO A POINT, THENCE S00°13'50"W A DISTANCE OF 273.61' PLUS OR MINUS TO THE TRUE POINT OF BEGINNING.

SAID PARCEL CONTAINS 35.69 ACRES, MORE OR LESS.

WHEREAS, the Development will result in impacts to the City's infrastructure system;

WHEREAS, the purpose of this Agreement is to outline the responsibilities of the City and the Developer for public infrastructure improvements relating to the Development;

WHEREAS, the Development proposes construction of a total of one hundred seven (107) residential units;

WHEREAS, the Development impacts the City's transportation network and emergency response ability;

WHEREAS, the Development increases the service area for Cheyenne Fire Rescue and necessitates system improvements to serve the area;

WHEREAS, the Development requires construction of offsite improvements to serve the Development;

WHEREAS, in association with the Development, a traffic study was provided and said traffic study warranted off-site improvements, including signalization, of the intersection of Dell Range Boulevard and Van Buren Street;

WHEREAS, the City and the Developer have agreed on a cost share for improvements and signalization of the intersection of Dell Range Boulevard and Van Buren Street;

WHEREAS, the City and County have programmed improvements to Dell Range Boulevard and intend to design and construct the improvements in fiscal years 2023 to 2024;

WHEREAS, public safety fees shall be collected and deposited into the Development Impact Fund and segregated for the purpose of public safety and infrastructure;

WHEREAS, a public safety fee of seven hundred fifty-six dollars (\$756.00) per dwelling unit is deemed appropriate for the Development.

NOW, THEREFORE, in consideration of the promises of the parties hereto and other good and valuable consideration, the receipt and adequacy of which are hereby acknowledged, the Parties agree as follows:

1. Recitals Incorporated. The foregoing recitals are incorporated herein by reference into this Agreement as though set forth at length.
2. The Parties agree to the following regarding public improvements, payments, and payment schedule associated with the Development:

A. Van Buren Avenue signalization: Estimated total cost is \$225,796.00 (based on the average of the last three traffic signal bids accepted by the City):

a. City Share: 15.5% (\$34,998.00).

b. Developer Share: 84.5% (\$190,798.00).

If the actual cost of design and construction exceeds 110% of the estimated total cost, both parties agree to their pro rata share.

B. The Van Buren signalization, as detailed in 2.A above, shall be designed and constructed by the City.

C. Improvements to the intersection of Dell Range Boulevard and Van Buren Avenue shall be designed and constructed by the City in conjunction with the Dell Range Boulevard improvement project.

D. Payment by the Developer shall be made prior to City signature on and recording of the Whitney Ranch 3rd Filing final plat document.

3. The Parties agree to the following public safety fees regarding public safety improvements:

A. Public safety fees total eighty thousand eight hundred ninety-two dollars (\$80,892.00).

B. Public safety fees shall be collected by the City prior to recording of the Whitney Ranch 3rd Filing final plat within the Development. Public safety fees shall be based on subdivision plat assumptions regarding number of units as provided in subsection A above.

C. Public safety fees shall be deposited into the Development Impact Fund and segregated for the purpose of public safety and infrastructure.

D. The Developer may, at any time, request a report of the account activity in the Development Impact Fund and the City Treasurer shall deliver said report within thirty (30) days.

E. If the City implements a City-wide public safety fee requirement for residential development with fees due at the time of building permit application, lots within the Development shall be exempt from fee requirements. Any funds paid into the Development Impact Fund in excess of the adopted fee schedule shall be refunded to the Developer within sixty (60) days of adoption of said public safety fee requirement. Shall the City enter into a subsequent development agreement requiring a lessor per unit fee, the difference of funds paid into the Development Impact Fund in excess of the subsequent development agreement per unit fee shall be

refunded to the Developer within sixty (60) days of adoption of said public safety fee requirement. If the City does not implement a City-wide public safety fee requirement for residential development within twenty-four (24) months of this Agreement, public safety fees paid shall be refunded to the Developer upon request by the Developer. Any request for a refund in whole or in part shall be made by the Developer and shall occur within sixty (60) days of an event triggering refund.

4. **Binding Effect.** This Agreement shall run with the Property for a period of fifteen (15) years and shall commence after the final approval of all phases of the Development by the City. This Agreement shall also be binding upon and inure to the benefit of the parties hereto, their respective personal representatives, heirs, successors, grantees and assigns. Assignment of interest within the meaning of this paragraph shall specifically include, but not be limited to, a conveyance or assignment of any portion of the Developer's legal or equitable interest in the Property, as well as any assignment of the Developer's rights to develop the Property under the terms and conditions of this Agreement. This Agreement shall be recorded against all lots within future phases of the Development.
5. **Relationship of Parties.** Nothing contained in this Agreement shall be deemed or construed, either by the parties hereto or by any third party, to create the relationship of principal and agent or create any partnership, joint venture or other association between the City and the Developer.
6. **Counterparts.** This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which, together, shall constitute one and the same instrument.
7. **Applicable Law.** This Agreement shall be governed by and construed and enforced in accordance with the laws of the State of Wyoming.
8. **Governmental Immunity.** The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.
9. **Entire Agreement.** This Agreement (including the Exhibits attached hereto) contains the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous representations, statements, understandings, negotiations and agreements, oral or written, between the parties, if any, with respect thereto.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement on the day and year first written above.

CITY:

City of Cheyenne, a Municipal Corporation

By: Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

DEVELOPER:

Whitney Ranch LLC, a Limited Liability Corporation

By: Ross Malinski, Managing Member, as Registered Agent

[Acknowledgments on following page]

ACKNOWLEDGMENTS

State of Wyoming)
) ss.
County of Laramie)

Subscribed and sworn to (or affirmed) before me this _____ day of _____, 2021, by
Patrick Collins, Mayor of the City of Cheyenne.

Witness my hand and official seal.

Notary Public

My commission expires: _____

State of Wyoming)
) ss.
County of Laramie)

Subscribed and sworn to (or affirmed) before me this _____ day of _____, 2021, by
Ross Malinski as Registered Agent for Whitney Ranch, LLC.

Witness my hand and official seal.

Notary Public

My commission expires: _____